

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 725

Introduced by Quick, 35.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the State Electrical Act; to amend sections
- 2 81-2102, 81-2107, 81-2108, 81-2109, 81-2112.02, 81-2113, 81-2117.02,
- 3 81-2118, 81-2121, 81-2134, 81-2135, and 81-2144, Reissue Revised
- 4 Statutes of Nebraska; to redefine terms; to change provisions
- 5 relating to licenses; to change provisions relating to fees; to
- 6 change provisions relating to inspections; to change provisions
- 7 relating to directional boring or knifing; to harmonize provisions;
- 8 and to repeal the original sections.
- 9 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 81-2102, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 81-2102 For purposes of the State Electrical Act, unless the context
4 otherwise requires:

5 (1) Apprentice electrician means any person, other than a licensee,
6 who, as such person's principal occupation, is engaged in learning and
7 assisting in the installation, alteration, and repair of electrical
8 equipment as an employee of a licensee and who is registered with the
9 board. For purposes of this subdivision, persons who are not engaged in
10 the installation, alteration, or repair of electrical wiring and
11 apparatus, either inside or outside buildings, shall not be considered
12 apprentice electricians;

13 (2) Board means the State Electrical Board;

14 (3) Class A master electrician means a person having the necessary
15 qualifications, training, experience, and technical knowledge to properly
16 plan, lay out, and supervise the installation of wiring, apparatus, and
17 equipment for electric light, heat, power, power limited systems, and
18 other purposes and who is licensed by the board;

19 (4) Class B electrical contractor means a person having the
20 necessary qualifications, training, experience, and technical knowledge
21 to properly plan, lay out, install, and supervise the installation of
22 wiring, apparatus, and equipment for power limited systems not to exceed
23 one hundred volts and one thousand volt-amps in commercial installations,
24 industrial installations, ~~systems of not over four hundred ampere~~
25 ~~capacity for light, heat, power, and other purposes in any structure used~~
26 ~~and maintained as a residential dwelling but not larger than a four-~~
27 ~~family dwelling located in any municipality which has a population of~~
28 ~~less than one hundred thousand inhabitants as determined by the most~~
29 ~~recent federal decennial census or the most recent revised certified~~
30 ~~count by the United States Bureau of the Census~~ and who is licensed by
31 the board;

1 (5) Class B journeyman electrician means a person having the
2 necessary qualifications, training, experience, and technical knowledge
3 to wire for or install electrical wiring, apparatus, and equipment for
4 power limited systems not to exceed one hundred volts and one thousand
5 volt-amps in commercial installations, industrial installations, systems
6 ~~of not over four hundred ampere capacity for light, heat, power, and~~
7 ~~other purposes in any structure used and maintained as a residential~~
8 ~~dwelling but not larger than a four family dwelling located in any~~
9 ~~municipality which has a population of less than one hundred thousand~~
10 ~~inhabitants as determined by the most recent federal decennial census or~~
11 ~~the most recent revised certified count by the United States Bureau of~~
12 ~~the Census and who is licensed by the board;~~

13 (6) Commercial installation means an installation intended for
14 commerce, but does not include a residential installation;

15 (7) Electrical contractor means a person having the necessary
16 qualifications, training, experience, and technical knowledge to properly
17 plan, lay out, install, and supervise the installation of wiring,
18 apparatus, and equipment for electric light, heat, power, power limited
19 systems, and other purposes and who is licensed by the board;

20 (8) Fire alarm installer means any person having the necessary
21 qualifications, training, and experience to plan, lay out, and install
22 electrical wiring, apparatus, and equipment for only those components of
23 fire alarm systems from the first point of overcurrent ~~that operate at~~
24 ~~fifty volts or less~~ and who is licensed by the board;

25 (9) Industrial installation means an installation intended for use
26 in the manufacture or processing of products involving systematic labor
27 or habitual employment and includes installations in which agricultural
28 or other products are habitually or customarily processed or stored for
29 others, either by buying or reselling on a fee basis;

30 (10) Inspector means a person certified as an electrical inspector
31 upon such reasonable conditions as may be adopted by the board. The board

1 may permit more than one class of electrical inspector;

2 (11) Journeyman electrician means a person having the necessary
3 qualifications, training, experience, and technical knowledge to wire for
4 or install electrical wiring, apparatus, ~~and equipment, and power limited~~
5 systems, and to supervise apprentice electricians, and who is licensed by
6 the board;

7 (12) New electrical installation means the installation of wiring,
8 apparatus, and equipment for electric light, heat, power, and other
9 purposes;

10 (13) Public-use building or facility means any building or facility
11 designated for public use;

12 (14) Residential installation means an installation intended for a
13 single-family or two-family residential dwelling or a multi-family
14 residential dwelling not larger than three stories in height;

15 (15) Residential journeyman electrician means a person having the
16 necessary qualifications, training, experience, and technical knowledge
17 to wire for or install electrical wiring, apparatus, and equipment in any
18 structure used and maintained as a residential dwelling but not larger
19 than a four-family dwelling for residential installations and to
20 supervise apprentice electricians and who is licensed by the board;

21 (16) Routine maintenance means the repair or replacement of existing
22 electrical apparatus and equipment of the same size and type for which no
23 changes in wiring are made; and

24 (17) Special electrician means a person having the necessary
25 qualifications, training, and experience in wiring or installing special
26 classes of electrical wiring, apparatus, equipment, or installations
27 which shall include irrigation system wiring, well pump wiring, air
28 conditioning and refrigeration installation, and sign installation and
29 who is licensed by the board.

30 **Sec. 2.** Section 81-2107, Reissue Revised Statutes of Nebraska, is
31 amended to read:

1 81-2107 (1) An applicant for an electrical contractor license shall
2 (a) be a graduate of a four-year electrical course in an accredited
3 college or university or (b) have at least one year's experience,
4 acceptable to the board, as a journeyman electrician.

5 (2) A Class B electrical contractor license shall be valid only for
6 power limited systems not to exceed one hundred volts and one thousand
7 volt-amps in commercial and industrial installations. in regard to
8 ~~systems of not over four hundred amperes in capacity in structures used~~
9 ~~and maintained as residential dwellings but not larger than four-family~~
10 ~~dwellings located in any municipality which has a population of less than~~
11 ~~one hundred thousand inhabitants as determined by the most recent federal~~
12 ~~decennial census or the most recent revised certified count by the United~~
13 ~~States Bureau of the Census.~~

14 **Sec. 3.** Section 81-2108, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 81-2108 (1) Except as provided in subsection (2) of this section or
17 in section 81-2112 or 81-2144, no person shall, for another, wire for or
18 install electrical wiring, apparatus, or equipment unless he or she is
19 licensed by the board as a Class B electrical contractor, an electrical
20 contractor, a Class A master electrician, or a fire alarm installer.

21 (2) Except as provided in section 81-2106, 81-2112, or 81-2144, no
22 person shall wire for or install electrical wiring, apparatus, or
23 equipment or supervise an apprentice electrician unless such person is
24 licensed as a Class B journeyman electrician, a journeyman electrician, a
25 residential journeyman electrician, or a fire alarm installer and is
26 employed by a Class B electrical contractor, an electrical contractor, a
27 Class A master electrician, or a fire alarm installer.

28 (3) For purposes of this section, the holder of a fire alarm
29 installer license shall only supervise those apprentices engaged in the
30 installation of fire alarm equipment and apparatus operating at fifty
31 volts or less.

1 ~~(4) (3)~~ No person licensed under the State Electrical Act may lend
2 his or her license to any person or knowingly permit the use of such
3 license by another.

4 **Sec. 4.** Section 81-2109, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 81-2109 (1) An applicant for a journeyman electrician license shall
7 have at least four years' experience, acceptable to the board, in the
8 electrical trade. Registration as an apprentice electrician for those
9 years shall, on the approval of the board, constitute evidence of such
10 experience. The board may by rule or regulation provide for the allowance
11 of one year of experience credit for successful completion of a two-year
12 post-high school electrical course approved by the board.

13 (2) ~~An On and after July 16, 2004, an applicant for a Class B~~
14 ~~residential~~ journeyman electrician license shall have at least three
15 years' experience, acceptable to the board, in the electrical trade.
16 Registration as an apprentice electrician for those years shall, on the
17 approval of the board, constitute evidence of such experience. The board
18 may by rule or regulation provide for the allowance of one year of
19 experience credit for successful completion of a two-year post-high
20 school electrical course approved by the board. ~~A residential journeyman~~
21 ~~electrician license shall be valid only for residential installations.~~

22 (3) A Class B journeyman electrician license shall be valid only for
23 power limited systems not to exceed one hundred volts and one thousand
24 volt-amps in commercial and industrial installations. ~~electrical systems~~
25 ~~of not over four hundred amperes in capacity in structures used and~~
26 ~~maintained as residential dwellings but not larger than four family~~
27 ~~dwellings located in any municipality which has a population of less than~~
28 ~~one hundred thousand inhabitants as determined by the most recent federal~~
29 ~~decennial census or the most recent revised certified count by the United~~
30 ~~States Bureau of the Census.~~

31 **Sec. 5.** Section 81-2112.02, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 81-2112.02 ~~On and after September 9, 1993, any person licensed as a~~
3 ~~fire alarm installer may plan, lay out, and install electrical wiring,~~
4 ~~apparatus, and equipment for only those components of fire alarm systems~~
5 ~~that operate at fifty volts or less.~~ An applicant for a fire alarm
6 installer license shall have at least two years experience, acceptable to
7 the board, in planning, laying out, and installing fire alarm systems.

8 **Sec. 6.** Section 81-2113, Reissue Revised Statutes of Nebraska, is
9 amended to read:

10 81-2113 (1) A person may register with the board and pay a fee as
11 provided in section 81-2118 to work as an apprentice electrician. Such
12 registration shall entitle the registrant to act as an apprentice
13 electrician to a Class B electrical contractor, an electrical contractor,
14 a Class B journeyman electrician, a journeyman electrician, a residential
15 journeyman electrician, or a Class A master electrician as provided in
16 subsection (2) of this section. At the time of registration renewal, an
17 apprentice shall pay the fee for renewal provided by section 81-2118 and
18 present documentary evidence of any continuing education courses under
19 section 81-2117.01 completed by the applicant. The board shall assess up
20 to a six-month increase of required experience necessary for the
21 applicant to qualify for the examination under section 81-2115 unless the
22 applicant presents documentary evidence of the requisite hours of
23 continuing education courses under section 81-2117.01.

24 (2) An apprentice electrician shall do no electrical wiring except
25 under the direct personal on-the-job supervision and control and in the
26 immediate presence of a licensee under the State Electrical Act. Such
27 supervision shall include both on-the-job training and related classroom
28 training as approved by the board. The licensee may employ or supervise
29 apprentice electricians at a ratio not to exceed three apprentice
30 electricians to one licensee, except that such ratio and the other
31 requirements of this section shall not be applicable to a teacher-student

1 relationship within a classroom of a community college.

2 (3) For purposes of this section, the direct personal on-the-job
3 supervision and control and in the immediate presence of a licensee shall
4 mean the licensee and the apprentice electrician shall be working at the
5 same project location but shall not require that the licensee and
6 apprentice electrician must be within sight of one another at all times.

7 (4) ~~(3)~~ An apprentice electrician shall not install, alter, or
8 repair electrical equipment except as provided in this section, and the
9 licensee employing or supervising an apprentice electrician shall not
10 authorize or permit such actions by the apprentice electrician.

11 **Sec. 7.** Section 81-2117.02, Reissue Revised Statutes of Nebraska, is
12 amended to read:

13 81-2117.02 (1) No license as a Class A master electrician, ~~Class B~~
14 ~~electrical contractor, or Class B journeyman electrician~~ shall be issued
15 on or after September 9, 1993, but such license ~~licenses~~ may be renewed
16 as provided in this section.

17 (2) A person licensed as a Class A master electrician, ~~a Class B~~
18 ~~electrical contractor, a Class B journeyman electrician, or a special~~
19 ~~electrician on September 9, 1993,~~ may renew such license ~~on or after such~~
20 ~~date~~ upon presentation of documentary evidence of successful completion
21 of the requisite hours of continuing education courses under section
22 81-2117.01 and payment of the fee for renewal provided by section
23 81-2118.

24 **Sec. 8.** Section 81-2118, Reissue Revised Statutes of Nebraska, is
25 amended to read:

26 81-2118 All licenses or registrations issued under the State
27 Electrical Act shall expire on December 31 of each even-numbered year.
28 All license or registration applications shall include the applicant's
29 social security number.

30 The board shall, by a unanimous vote of the board, set reasonable
31 fees for examination, issuance, and renewal of licenses and registrations

1 issued under the State Electrical Act in amounts necessary to cover the
2 costs incurred by the State Electrical Division and the board in
3 administering and carrying out the purposes of the State Electrical Act
4 and in a manner that unnecessary surpluses are avoided. The board shall
5 annually file a report with the Attorney General and the Legislative
6 Fiscal Analyst stating the amount of the fees set by the board. Such
7 reports shall be submitted on or before July 1 of each year. The report
8 submitted to the Legislative Fiscal Analyst shall be submitted
9 electronically. The board shall establish ~~the following~~ fees:

10 (1) For examination for the following licenses:

11 (a) Electrical contractor;

12 (b) Class B electrical contractor;

13 (c) (b) Journeyman electrician;

14 (d) Class B (c) Residential journeyman electrician;

15 (e) Resident journeyman electrician;

16 (f) (d) Fire alarm installer; and

17 (g) (e) Special electrician license , ~~sixty dollars~~;

18 (2) For each year of the two-year license period for issuance and
19 renewal of the following licenses:

20 (a) Electrical contractor; ~~and~~

21 (b) Class B electrical contractor;

22 (c) (b) Journeyman electrician;

23 (d) Class B , ~~residential~~ journeyman electrician;

24 (e) Residential journeyman electrician;

25 (f) Fire , ~~fire~~ alarm installer; and

26 (g) Special , ~~or special~~ electrician;

27 (3) For each year of the two-year registration period for issuance
28 and renewal as an apprentice electrician; and

29 (4) For renewal on or after September 9, 1993, of the Class A master
30 electrician license ~~following licenses~~ issued prior to such date for each
31 year of the two-year license period. ÷

- 1 ~~(a) Class B electrical contractor;~~
- 2 ~~(b) Class A master electrician; and~~
- 3 ~~(c) Class B journeyman electrician.~~

4 The holder of a ~~an~~ expired license or registration may renew the
5 license or registration beginning October 1 through November 31 of even
6 numbered years upon payment of the license or registration fee. The
7 holder of a license or registration may renew the license or registration
8 from December 1 through December 31 of even numbered years ~~for a period~~
9 ~~of three months from the date of expiration~~ upon payment of the license
10 or registration fee plus ten percent of the renewal fee ~~for each month or~~
11 ~~portion thereof past the expiration date.~~ All holders of expired licenses
12 or registrations ~~expired for more than three months~~ shall apply for a new
13 license or registration.

14 **Sec. 9.** Section 81-2121, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 81-2121 Nothing in the State Electrical Act shall be construed to:

17 (1) Require employees of municipal corporations, public power
18 districts, public power and irrigation districts, electric membership or
19 cooperative associations, public utility corporations, railroads,
20 telephone or telegraph companies, or commercial or industrial companies
21 performing manufacturing, installation, and repair work for such employer
22 to hold licenses while acting within the scope of their employment;

23 (2) Require any person doing work for which a license would
24 otherwise be required under the act to hold a license issued under the
25 act if he or she is the holder of a valid license issued by any city or
26 other political subdivision, so long as he or she makes electrical
27 installations only in the jurisdictional limits of such city or political
28 subdivision and such license issued by the city or political subdivision
29 meets the requirements of the act;

30 (3) Cover the installation, maintenance, repair, or alteration of
31 vertical transportation or passenger conveyors, elevators, moving walks,

1 dumbwaiters, stagelifts, manlifts, or appurtenances thereto beyond the
2 terminals of the controllers. The licensing of elevator contractors or
3 constructors shall not be considered a part of the licensing requirements
4 of the act;

5 (4) Require a license of any person who engages any electrical
6 appliance where approved electrical outlets are already installed;

7 (5) Prohibit an owner of property from performing work on his or her
8 principal residence, if such residence is not larger than a single-family
9 dwelling, or farmstead ~~farm property~~, excluding commercial or industrial
10 installations or installations in public-use buildings or facilities, or
11 require such owner to be licensed under the act;

12 (6) Require that any person be a member of a labor union in order to
13 be licensed; or

14 (7) Prohibit a pump installation contractor or pump installation
15 supervisor licensed under the Water Well Standards and Contractors'
16 Practice Act from wiring pumps and pumping equipment at a water well
17 location to the first control.

18 **Sec. 10.** Section 81-2134, Reissue Revised Statutes of Nebraska, is
19 amended to read:

20 81-2134 (1) ~~As to state inspections: (a)~~ At or before commencement
21 of any electrical installation which is required by law to be inspected,
22 the person responsible for the installation shall forward a request for
23 inspection to the board completed in the manner prescribed by the
24 board. ~~;~~ and

25 ~~(b) On installations requiring more than six months in the process~~
26 ~~of construction and in excess of three hundred dollars total inspection~~
27 ~~fees, the persons responsible for the installation may, after a minimum~~
28 ~~filing fee of one hundred dollars, pay a prorated fee for each month and~~
29 ~~submit it with an order for payment initiated by the electrical~~
30 ~~inspector.~~

31 (2) Where wiring is to be concealed, the inspector must be notified

1 within reasonable time to complete a rough-in inspection prior to
2 concealment, exclusive of Saturdays, Sundays, and holidays. If wiring is
3 concealed before rough-in inspection without adequate notice having been
4 given to the inspector, the person responsible for having enclosed the
5 wiring shall be responsible for all costs resulting from uncovering and
6 replacing the cover material.

7 (3) Inspections shall be made within one week of the appropriate
8 request. When necessary, circuits may be energized by the authorized
9 installer prior to inspection but the installation shall remain subject
10 to condemnation and disconnection.

11 **Sec. 11.** Section 81-2135, Reissue Revised Statutes of Nebraska, is
12 amended to read:

13 81-2135 (1) The board shall, by a unanimous vote of the board, set
14 reasonable fees for state electrical inspections under the State
15 Electrical Act in amounts necessary to cover the costs incurred by the
16 State Electrical Division and the board in administering and carrying out
17 the purposes of the State Electrical Act and in a manner that unnecessary
18 surpluses are avoided. The board shall annually file a report with the
19 Attorney General and the Legislative Fiscal Analyst stating the amount of
20 the fees set by the board. Such reports shall be submitted on or before
21 July 1 of each year. The report submitted to the Legislative Fiscal
22 Analyst shall be submitted electronically.

23 (2) All state electrical inspection fees shall be due and payable to
24 the board at or before commencement of the installation and shall be
25 forwarded with the request for inspection. Inspection fees set by the
26 board in accordance with this section shall not apply within the
27 jurisdiction of any county, city, or village if the county, city, or
28 village has adopted an ordinance or resolution as set forth in the State
29 Electrical Act.

30 (3) The board shall establish the following fees:

31 (a) Minimum fee for each separate inspection of an installation,

1 replacement, alteration, or repair;

2 (b) Services, change of services, temporary services, additions,
3 alterations, or repairs on either primary or secondary services;

4 (c) Field irrigation system inspections;

5 (d) The first reinspection required as a result of a correction
6 order; a second reinspection required as a result of noncompliance with
7 the same correction order; and subsequent reinspections associated with
8 the same correction order; and

9 (e) An inspection is requested by an owner.

10 (4) The fee for fire and accident inspections shall be computed at
11 the rate set by the board per hour, and mileage and other expenses shall
12 be reimbursed as provided in section 81-1176.

13 (5) After an inspection the board may charge an additional fee if
14 the cost incurred during the inspection is greater than what was covered
15 by the original inspection fee.

16 **Sec. 12.** Section 81-2144, Reissue Revised Statutes of Nebraska, is
17 amended to read:

18 81-2144 (1) A person who is a directional boring or knifing
19 contractor may install underground conduit or conductors on the load side
20 of the meter under the direct supervision of a Class A master
21 electrician, or journeyman electrician, or Class B journeyman
22 electrician who is employed by an electrical contractor.

23 (2) Electrical contractors who own and provide directional boring or
24 knifing services shall only allow employees that have an apprentice
25 registration or a journeyman electrician, a Class A master electrician,
26 or an electrical contractor license perform directional boring
27 activities.

28 **Sec. 13.** Original sections 81-2102, 81-2107, 81-2108, 81-2109,
29 81-2112.02, 81-2113, 81-2117.02, 81-2118, 81-2121, 81-2134, 81-2135, and
30 81-2144, Reissue Revised Statutes of Nebraska, are repealed.